FOGGS | Foundation for Global Governance and Sustainability

The Russia-Ukraine War and the UN Charter provisions for the peaceful settlement of disputes

Authors
Tapio Kanninen
Georgios Kostakos

Discussion Paper
May 2024

FOGGS PAPERS

Foundation for Global Governance and Sustainability (FOGGS)
Rue Abbé Cuypers 3
1040 Brussels, Belgium
info@foggs.org
www.foggs.org

About the Authors

Tapio Kanninen, PhD, is Senior Fellow and Project Leader on Major Wars at the Ralph Bunche Institute for International Studies at the Graduate Center of the City University of New York. Former Chief of Policy Planning at the UN's Department of Political Affairs in New York, he is a member of the Advisory Board of the Foundation for Global Governance and Sustainability (FOGGS). He is also currently President of the Global Crisis Information Network Inc. and a founding member of Climate Leadership Coalition Inc. His latest book is Crisis of Global Sustainability (2013). While at the UN, Kanninen also served as Head of the Secretariat of Kofi Annan's five Summits with Regional Organizations that also included military alliances like NATO.

Georgios Kostakos, PhD, is Co-founder and Executive Director of the Brussels-based Foundation for Global Governance and Sustainability (FOGGS), which inter alia focuses on ethics in global governance and a new globalization narrative, the establishment of a Global Resilience Council, and rethinking education for the digital era. About half of his thirty-year-long work experience has been with the UN, including the Executive Office of the UN Secretary-General, the High-level Panel on Global Sustainability, and the UN Framework Convention on Climate Change (UNFCCC).

Disclaimer

This Publication is issued by FOGGS and remains the property of the Foundation. Reproduction is authorized for non-commercial purposes provided the source is acknowledged.

The contents of this publication are the responsibility of the authors and should not be interpreted as necessarily reflecting the views of the FOGGS Executive Board or the FOGGS partners or sponsors.

© 2024 Foundation for Global Governance and Sustainability (FOGGS)

ISSN - 2983-7227 ISBN - 978-2-9603389-1-1

TABLE OF CONTENTS

INTRODUCTION – UN CHARTER PROVISIONS FOR THE PEACEFUL RESOLUTION OF DISPUTES…… 2

BACKGROUND TO THE RUSSIA-UKRAINE CONFLICT…… 2

UN CHARTER PROVISIONS AND THE RUSSIA-UKRAINE WAR…… 3

A. NEGOTIATION AND CONSULTATION…… 3
B. INQUIRY…… 4
C. and D. GOOD OFFICES AND MEDIATION…… 4
E. CONCILIATION…… 6
F. ARBITRATION…… 6
G. JUDICIAL SETTLEMENT…… 6
H. RESORT TO REGIONAL AGENCIES AND AGREEMENTS…… 7

CONCLUSIONS…… 7

REFERENCES…… 9

Introduction - UN Charter provisions for the peaceful resolution of disputes[1]

It is eye-catching and utterly frustrating that the numerous methods for the peaceful settlement of disputes between states foreseen in the UN Charter have not been deployed, at all or not successfully, towards ending the Russia-Ukraine conflict that actually pits the West against the East and has the potential of escalating to another Europe-originating world war, even a nuclear war.

Chapter VI of the UN Charter is entitled "Pacific Settlement of Disputes". Its first article, 33.1, already enumerates the methods that can be used by "The parties to any dispute, the continuance of which is likely to endanger the maintenance of international peace and security", namely "[they] shall, first of all, seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice." Furthermore, "The Security Council may… recommend appropriate procedures or methods of adjustment" (Article 36.1).

In 1992, the UN Office of Legal Affairs published the *Handbook on the Peaceful Settlement of Disputes between States* (United Nations, 1992), which identified the following methods: a) Negotiation and consultation, b) Inquiry, c) Good offices, d) Mediation, e) Conciliation, f) Arbitration, g) Judicial settlement, h) Resort to regional agencies or arrangements, and i) Other peaceful means.

Below, we examine whether any of these peaceful means were used to resolve the Russia-Ukraine War, why they failed if they were used, and if they were not why so. The article concludes with some thoughts about a possible revival of negotiation / mediation efforts.

Background to the Russia-Ukraine conflict

The Russia-Ukraine conflict did not start in February 2022. It was a sore point of a difficult relationship that developed between the West and Russia soon after the end of the Cold War. The US, UK and other Western countries continued to regard Russia as a military threat, succeeding the Soviet Union in that respect too, as became clear by successive waves of NATO expansion into former Warsaw Pact and Soviet Union territory. Some respected U.S. foreign policy experts — such as the chief architect of the containment policy and the Marshall Plan, Georg Kennan — viewed NATO's expansion as a fundamental mistake, as they thought it would start a new Cold War. Kennan even called NATO expansion "a strategic blunder of possible epic proportions" (Talbott, 2002).

The West and Russia have held completely different views on Ukraine's political, strategic, and military status and importance. The long-term objective of NATO has been Ukraine's accession, while Russia systematically opposed NATO's enlargement and had made clear that Ukraine's eventual membership in NATO would be a "red line", which if crossed would have serious consequences. Similarly, minority opinion in the West has regarded NATO's threat of enlargement into Ukraine as the real cause of Russia's aggression in 2022. But also, NATO Secretary-General Jens Stoltenberg said the same in his speech to the European Parliament on September 7, 2023, "So he

[1] This paper draws heavily on a Guest Article by Tapio Kanninen published in the Finnish on-line law journal and legal service platform "Edilex.fi" on 19 April 2024 under the title "Resolution of the Ukraine War through the Methods of Peaceful Settlement of Disputes provided by Chapter VI of the UN Charter".

[President Putin] went to war to prevent NATO, more NATO, close to his borders. He has the exact opposite. He has got more NATO presence in the eastern part of the Alliance..." (Stoltenberg, 2023). Another bone of contention, in terms of politics and trade, was Ukraine's becoming a candidate country and eventually joining the European Union or joining the Russia-dominated Eurasian Union. These two opposite pathways, in a country divided internally in its orientation, were personified by its third and fourth Presidents, Viktor Yushchenko (2005-2010) and Viktor Yanukovych (2010-2014) who was forced to flee the country in February 2014.

Moreover, the existence of significant Russian-speaking populations within Ukraine and their claimed unequal treatment compared to Ukrainian speakers, was a source of internal tension and a lever used by Russia to meddle into Ukraine's affairs. The high concentration of Russian speakers in the Donbas region of Ukraine, on the border with Russia, and in the strategic Crimea Peninsula, enabled Russia to use the card of Russophile autonomist movements and eventually to declare possession of these territories, Crimea already since 2014, and the Donetsk and Luhansk areas (collectively "The Donbas") soon after the 2022 invasion.

The mainstream view among NATO members is that Russia is an imperialist nation that poses a military threat to the West, a threat that must be resolutely addressed. According to this view, negotiations are not needed, and NATO's deterrence must instead be strengthened, including expansion of its membership. In addition to the military threat, several Western politicians stress that Russia is a morally corrupt evil empire – especially because of President Vladimir Putin's increasingly autocratic leadership that has turned Russia into a dictatorship. Therefore, it is impossible to negotiate with him.

Negotiations between Ukraine and Russia did take place, though, between 2014 and 2015 in Minsk, Belarus, with France, Germany and the Organization for Security and Cooperation in Europe (OSCE) as intermediaries. However, the Minsk I and II agreements that resulted from the negotiation process failed to prevent the continuation of the Donbas war. According to some accounts, notably an interview that former German Chancellor Angela Merkel gave, the West and Ukraine did not participate in these early negotiations in good faith, but rather used them to buy time for Ukraine's armament and preparation for war.

Just before the start of the larger war, in December 2021, Russia presented a negotiating offer both to NATO and the United States which included, among other things, giving up NATO's goal of Ukraine becoming a member. The United States and NATO rejected the proposal. Steven Pifer of the Brookings Institution, however, believed that some of Russia's proposals could well have been negotiated with the US and NATO, some would have been difficult to accept but could still be negotiated, and some would have been nonstarters to the West (Pifen, 2021). But there was no desire for negotiations in the West at that point of time (Stoltenberg, 2023 and Kanninen & Patomäki, 2023).

UN Charter provisions and the Russia-Ukraine War

A. Negotiation and consultation

Once the Russian invasion started, talks were held between Russia and Ukraine during February 2022 in Belarus, and later (March-April 2022) in Türkiye. Fiona Hill and Angela Stent stated in Foreign Affairs that the preliminary agreement between Ukrainian and Russian negotiators had already been reached. Ukraine would no longer seek membership in NATO but would receive security guarantees from several countries. Russia would on its part agree to withdraw to the military situation of 23 February 2022, that is, outside Ukraine's borders (Hill & Stent, 2022). Ukrainian pro-government

newspaper *Ukrainska Pravda* explained why the negotiations collapsed (Balachuk & Romaniuk, 2022). In early April, British Prime Minister Boris Johnson made a surprise visit to Kiev and told President Zelensky that a) Ukraine should not negotiate with a war criminal, President Putin; and that 2) the West would not support a negotiated solution, as Russia is militarily weaker than the West expected. Negotiations ended shortly after this visit and have not restarted in earnest since.

B. Inquiry

The Russia-Ukraine war's beginning can be traced back in the events of early 2014 – the Maidan Revolution in Ukraine and the Russian occupation of Crimea. Inquiry or fact-finding regarding the origin of the war has not yet been officially resorted to, though, as a way of finding a settlement. Nor has inquiry been used to prove or disprove mutual accusations surrounding the destruction of the Nordstream pipeline, the shelling of the Zaporizhzhia Nuclear Plant and the destruction of the Kakhovka Dam along the lower Dnieper River. There was thus no chance to establish the facts in an objective way, leaving it to the belligerents to define their respective realities and feed their respective biases.

Nevertheless, in April 2023, 155 former UN officials proposed in a letter to the United Nations Secretary-General that he appoint, or request the General Assembly to appoint, a Commission of Experts to collect information from all parties to the conflict, as this would be useful for resolving the war (FOGGS, 26 April 2023). Likewise, in June 2023 in an article entitled "Peace Prospects in Ukraine" Tapio Kanninen proposed that the UN General Assembly could ask the Secretary-General to embark on a fact-finding mission to the crisis area and the capitals of the countries concerned and to explore how various methods the UN customarily uses for a peaceful resolution of a conflict – peacekeeping operations, temporary administrations and peacebuilding offices – could be applied in Ukraine. The Secretary-General would report on the outcomes of his trip to the General Assembly and the Security Council. Such initiatives, if they had been undertaken, might have created momentum for the international community to consider employing the UN's traditional methods of bringing peace in Ukraine (Kanninen, 2013).

C. and D. Good offices and mediation

This situation between the West/US and Russia regarding Ukraine's geopolitical relevance and Russia's "red line" is not that different from the Cuban missile crisis of the 1960s. At the time, of course, it was the US that was ready to take military action to prevent / redress the deployment of Soviet nuclear weapons next to its territory, on the island of Cuba, the U.S. "red line". According to the Monroe Doctrine, the United States regarded Cuba as part of its sphere of influence and within its strategic national interests. When the Soviet Union brought nuclear missiles to Cuba and refused to withdraw them at the beginning of the crisis, US President Kennedy threatened with a military and even a nuclear response. Eventually, a confrontation was avoided, thanks also to the good offices of the then UN Secretary-General U Thant. The Soviet Union withdrew its nuclear missiles from Cuba, while the US / NATO also withdrew its nuclear missiles from the Turkish-Soviet border.

"Good offices" could have been given its own section in this paper. This method of peaceful resolution of disputes is less formal than traditional mediation. The mediation activities of President Martti Ahtisaari, for which he was awarded the Nobel Peace Prize, might well belong to the "good offices" category. In any case, good offices and mediation are linked in many ways, so it is easier to deal with them together in the same chapter.

Before the Russian invasion, French President Emmanuel Macron tried to prevent the outbreak of

the war with his talks and visits to Moscow. These efforts did not produce results. But the negotiations initiated by Israeli Prime Minister Naftali Bennett with both President Putin and President Zelensky, starting already before the invasion, and especially immediately after it, were close to yielding results. Bennett himself considered a 50% success rate during the negotiations but said in a long interview in January 2023 that the West had blocked his proposed solution to the war (Losonczi, 7 February 2023; in the article there is a video link to the interview with English subtitles).

Bennett's idea was to reach a ceasefire, which both Putin and Zelensky had agreed to. Bennett coordinated his mediation process with President Biden, President Macron, Chancellor Scholtz and Prime Minister Johnson. Macron and Scholtz were positive about the negotiations, Johnson on the side of the continuation of the aggressive policy of the West (i.e. supporting the war effort), and Biden in the middle, i.e. supporting both approaches. Bennett was disappointed that the West did not support his proposal, but later said that continuing the war might have been the best option anyway.

Traditionally, the Secretary-General of the United Nations offers himself as a mediator to resolve wars and conflicts or appoints a special envoy for mediation. Furthermore, the Secretary-General does not traditionally strongly condemn either of the parties to a dispute, otherwise he might compromise his image as an impartial mediator. At the start of the Russia-Ukraine war, however, Antonio Guterres did not undertake any specific good offices/mediation initiative, nor did he appoint a special envoy for the task. Instead, he made statements strongly condemning the Russian invasion as a clear breach of the UN Charter [2].

Such a stance seems to ignore the fact that the Charter of the United Nations has been violated several times over the decades by great powers or other states. This, however, has not prevented several previous Secretaries-General from presenting peace proposals and actively undertaking mediation efforts. But this was not the case regarding Antonio Guterres, whose apparent passivity, cloaked in a shell of immaculate righteousness, has being increasingly criticized. Among the critics were former UN officials, who sent a letter to the Secretary-General on15 April 2022 asking him to start necessary mediation to end the war. A total of 283 former UN officials, including several former Under- and Assistant Secretaries-General, signed the letter (FOGGS, 15 April 2022). Two days later, Guterres traveled to Moscow and Kiev through Ankara but achieved no positive effects.

If no substantive mediation initiative can be expected from the UN Secretary-General, and the West has disqualified itself by fully aligning behind Ukraine, what about other countries and leaders from around the world? On February 24, 2023, China submitted a twelve-point proposal to end the war in Ukraine, including a ceasefire, the observance of the rules of the war, the waiving of sanctions, the opening of peace negotiations and the prohibition of the use of nuclear weapons. The proposal has been criticized in the West as too general and even pro-Russian. Another proposal by the Former Defense Minister of Indonesia, who won his country's February 2024 presidential election, General Prabowo Subianto, put forward at the Shangri-La Dialogue Conference in Singapore in June 2023, would see the establishment of a demilitarized zone in Ukraine, with UN monitoring and UN administered referenda in the disputed areas in Ukraine. This proposal has also been criticized by Western security experts and there has been no apparent steps yet in taking it further by the new Indonesian President.

[2] After the International Court of Justice ruled on March 16, 2022, that Russia should immediately withdraw from Ukraine, the Secretary-General tweeted that the decision supports his several petitions for peace. But the ruling was not unanimous when Russian and Chinese judges opposed the decision.

E. Conciliation

The English term "conciliation" generally refers to the Conciliation Commissions which use both the investigative procedure and mediation to resolve conflicts. In the war in Ukraine, this method has not been used. Something along similar lines has been proposed, though, in the letter to the Secretary-General of 26 April 2023 by 155 former UN officials that was earlier referred to. The proposal was for the Secretary-General to ask the General Assembly to appoint a Mixed Armistice Commission, consisting of representatives from Russia and Ukraine and headed by a special envoy of the General-Secretary. The Commission would prepare a ceasefire agreement and would be assisted by a separate Commission of Experts (see Inquiry section above). However, the Secretary-General has not taken any such initiative neither responded to the letter.

F. Arbitration

In 1899, the Hague Peace Conference established the Permanent Court of Arbitration. In arbitration proceedings, the parties to the conflict agree to settle their dispute in accordance with international law and may themselves appoint judges who will give their evaluation on the dispute and its fair settlement. The resolution brought by this method is binding to both parties to the conflict. Arbitration may also be conducted in forums other than the Permanent Court of Arbitration, including in secret proceedings that could increase the confidence of the parties in the method. Nevertheless, this procedure has not been used in the settlement of the Russia-Ukraine war.

G. Judicial settlement

Ukraine filed charges before the International Court of Justice (ICJ) on 27 February 2022 accusing Russia of manipulating the concept of genocide to justify its military aggression against Ukraine. On March 16, 2022, the Court ruled with a majority of 13 judges, with 2 against, that Russia must immediately stop its military operations. The Court's decision, although a provisional protection order while the main trial is still pending, is binding. Russia has not complied, though, so there has been no positive impact on the conflict that continues unabated.

The second indictment procedure has taken place at the International Criminal Court (ICC). On February 28, 2022, the prosecutor of the Court announced that he was seeking permission to initiate investigations on the agenda item "Situation in Ukraine". With 39 states "having sent referrals" and thus supporting the initiation of the investigation, the Prosecutor on 2 March 2022 officially opened an investigation into war crimes, crimes against humanity and genocide in the territory of Ukraine. Arrest warrants were eventually issued by the Court against President Putin and the Russian Commissioner for the Rights of the Child Maria Alekseevna Lvovo-Belova on March 17, 2023. According to the Court, it is reasonable to assume that both suspects are responsible for the illegal removal of Ukrainian children from Ukraine to the Russian territory. Rather than slowing down or even helping to end the war, one possible consequence of the arrest warrant has been that President Putin has not since participated in person in the UN General Assembly high-level debates or the G-20 meetings. This may be counterproductive in terms of reducing the chances to have him involved in any direct negotiation or mediation efforts.

H. Resort to regional agencies and agreements

Regional organizations in Europe include the European Union, the Organization for Security and Cooperation in Europe (OSCE), NATO and the Council of Europe. Ukraine is a member of the Council of Europe and the OSCE. Russia is only a member of the OSCE, following its expulsion from the Council of Europe through a decision of its Council of Ministers just after the invasion of Ukraine, on 16 March 2022. None of these regional bodies have been used for a peaceful settlement of the conflict. On the contrary, the EU and its member states have condemned the invasion of Ukraine, have imposed sanctions against Russia, and are providing a wide-range of support to Ukraine's war efforts, including: 1) financial assistance, 2) humanitarian assistance, 3) civil protection assistance, 4) support for the Ukrainian armed forces, 5) refugee reception, 6) investigation and prosecution of war criminals, 7) protection of children and 8) peace, recovery, and reconstruction.

The OSCE has been in crisis since the Russian occupation of Crimea. Several member states would like to separate Russia from the Organization, but since the OSCE operates on the principle of consensus, it is not possible. In any case, the Organization's Secretary-General and a large majority of its Parliament members have condemned the war launched by Russia and taken several activities to assist Ukraine, including in the investigation of war crimes. On the other hand, Russia did block the election of the new Secretary-General and the approval of the budget.

As mentioned above, Russia submitted a negotiating offer to NATO in December 2021, but the Organization rejected the proposal. NATO has strongly condemned the Russian invasion and supported Ukraine in numerous ways including by coordinating aid to the country and by aligning Soviet-era Ukrainian military equipment standards, training, and combat exercises with NATO standards. NATO has also established a NATO-Ukraine Council to improve political relations. In a broader geopolitical sense, NATO has also expanded after Finland and Sweden joined the Organization, and at the Vilnius Summit in July 2023 NATO confirmed the earlier goal that Ukraine should join the Organization once necessary conditions were met. This longer-term objective has been, as mentioned above, a "red line" for the Russian leadership.

Conclusions

As mentioned earlier, the Russia-Ukraine war's origin can be traced back in the events of early 2014 – the Maidan Revolution in Ukraine and the Russian occupation of Crimea. Immediately after these events, Henry Kissinger, in an opinion article in the *Washington Post*, saw the conflict severely escalating if the parties to it - the West and the East, as well as Ukraine and Russia – could not address its underlying causes. Addressing them would be the only way to prevent a greater catastrophe (Kissinger, 2014). He proposed the following principles for a negotiated settlement:

1. Ukraine should be able to choose its economic and political alliances according to its wishes.
2. Regarding the military alliance, Ukraine should not join NATO.
3. Ukraine should form a government that heeds the preferences of the residents of both the Eastern and Western regions of the country and, internationally, it should follow the model of the Finnish policy of non-alliance and neutrality, still in force at that time.
4. Crimea should remain part of Ukraine, but its autonomy should be guaranteed through a referendum monitored by international observers, and the status of the Russian naval base in Sevastopol should be clarified.

Ten years later, any settlement would most probably have to comply with these same principles. Has all the death and destruction of the last couple of years been for nothing, or for very little for both parties? In accepting the Charter of the United Nations, Member States are obliged to follow its

methods of peaceful resolution of disputes. Of course, states have an inherent right of individual or collective self-defense, as per Article 51 of the UN Charter. Ukraine's supporters have put most emphasis on this, largely neglecting mediation and other peaceful methods of conflict prevention and settlement under Chapter VI. Only the mediation efforts of Macron, Erdogan, and Bennett before and immediately after the war have been in line with Chapter VI of the Charter but at the same time some of the Western leaders have worked to torpedo any peaceful negotiating solution for geopolitical reasons.

Unfortunately, the attitude of the parties and their supporters is about who wins militarily and not how to settle for peace. Instead of mediation, more arms are flowing into Ukraine and there is an effort to isolate Russia completely, which brings it closer to China, Iran and other competitors/opponents of the West. In developing countries, however, the war is viewed differently, and there is still a desire in the Global South to seek peace and reconciliation in Ukraine so that efforts and resources can be focused on achieving the SDGs.

Why then the search for a peaceful and mediated solution to the war continues to be crucially important? The New York Times' respected veteran reporter David E. Sanger, in an article published on 9 March 2024, stated that the nuclear Armageddon — the threat of first-use of tactical nuclear weapons by Russia and then the war's expansion into a global nuclear war — was much closer in October 2022 than is widely known as Ukrainians had a good chance according to CIA estimates to recapture Crimea, a "red line" to Russia[3]. As the war continues at the time of writing this paper, the danger of nuclear war still exists and can increase considerably if the conflict expands.

Unfortunately, proposals for a peaceful negotiated solution to the war have been rare. Among them, the December 2022 article by A. Dirk Moses and Jessie Barnes Hronesova on how the UN's temporary administration model could be used to resolve the Ukraine-Russia war (Moses & Hronesova, 2022). Similarly, Tapio Kanninen and Heikki Patomäki suggested in a January 2023 article in *Le Monde Diplomatique* that the United Nations' long-standing experience in peace negotiations, peacekeeping forces, establishment of demilitarized zones, organization of elections, reconstruction, interim administration by the UN and other means at the disposal of the Organization to build peace could be used to resolve the war. In particular, they highlighted the very successful experience of the UN in East Timor (Kanninen & Patomäki, 2013).

It is interesting that – as mentioned earlier, in section C.-D. – the new President of Indonesia, General Prabowo Subianto, while still a defense minister at the Shangri-La Dialogue Conference in Singapore in June 2023, proposed a ceasefire and a demilitarized zone in Ukraine, and that the UN should monitor the zone and hold elections in the disputed areas in Ukraine. We remember that Indonesia conquered East Timor and occupied the country between 1975 and 1999. General Subianto himself had a much-criticized role during the military rule. Because of that, though, he may now see more clearly than others the potential and the necessity of the UN's neutral role in the settlement of the war in Ukraine. As in the case of East Timor / Timor Leste, a way out of the conflict and a lasting peace are urgently needed.

[3] Sanger explains further: "This account of what happened in those October days — as it happened, just before the 60th anniversary of the Cuban Missile Crisis, the closest the United States and the Soviet Union ever came to a nuclear exchange in the Cold War — was reconstructed in interviews I conducted over the past 18 months with administration officials, diplomats, leaders of NATO nations and military officials who recounted the depth of their fear in those weeks."

References

Balachuk, Ilyna and Romaniuk, Roman. Possibility of talks between Zelensky and Putin came to a halt after Johnson's visit, Ukrainska Pravda, 5 May 2022 https://www.pravda.com.ua/eng/news/2022/05/5/7344206/

FOGGS, 26 April 2023. https://www.foggs.org/wp-content/uploads/2023/06/Letter-to-UNSG-on-Ukraine-with-signatures-of-former-UN-staff- with-Addendum-April2023.pdf

FOGGS, 15 April 2022. https://www.foggs.org/wp-content/uploads/2023/06/Letter-to-UNSG-on-Ukraine-with-signatures-of-former-UN-staff- with-Addendum-April2022.pdf

Hill, Fiona and Stent Angela. 2022. The World Putin Wants. How Distortions About the Past Feed Delusions About the Future, Foreign Affairs, September-October 2022

Kissinger, Henry. 5 March 2014. How the Ukraine crisis ends. The Washington Post

Losonzi, Marton. 7 February of 2023. Russia-Ukraine Peace was blocked by Western Powers, former Israeli Prime Minister claims. The Hungarian Conservative

Kanninen, Tapio & Patomäki Heikki. Towards a Negotiated Peace in Ukraine, Giving Peace a Chance, Le Monde Diplomatique, January 2023

Kanninen, Tapio. Peace Prospects in Ukraine, in "An Enhanced Role for the United Nations in Peace & Human Security", Peacemaking Reflection Group of Former UN System Staff (PRG) and the Foundation for Global Sustainability and Security

Moses, Dirk A. & Hronesova, Jessie Barton. 5 December 2022. A diplomatic option to end endless war in Ukraine, Noame Magazine

Pifer, Steven. 2012. Russia's Draft Agreements with NATO and the United States: Intended for Rejection? December 21, 2022, Brookings Institute https://www.brookings.edu/articles/russia-draft-agreements-with-nato-and-the-united-states-intended-for-rejection/.

Talbott, Strobe,2012. The Russia Hand: A Memoir of Presidential Diplomacy, New York: Random House

Sanger, David E., Biden's Armageddon Moment: When Nuclear Detonation Seemed Possible in Ukraine. New York Times, 9 March 2024 https://www.nytimes.com/2024/03/09/us/politics/biden-nuclear-Russia-Ukraine.html?smid=nytcore-ios-share&referringSource=articleShare

Stoltenberg, Jens, 7 September, 2023. Opening remarks by NATO Secretary-General Jens Stoltenberg at the joint meeting of the European Parliament's Committee on Foreign Affairs (AFET) and the Subcommittee on Security and Defense (SEDE) followed by an exchange of views with Members of the EU, NATO website: https://www.nato.int/cps/en/natohq/opinions_218172.htm

United Nations.1992. Handbook on the Peaceful Settlement of Disputes between States, https://legal.un.org/cod/books/HandbookOnPSD.pdf, New York